

[doc. web n. 9925450]
Provision of July 6, 2023
Register of provisions
No. 336 of July 6, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for
the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June
30, 2003, No. 196, as amended by Legislative Decree of August 10, 2018, No. 101, hereinafter
"Code");

HAVING REGARD TO the Ethical Rules regarding the processing of personal data in the exercise of
journalistic activity, as set out in Annex 1 of the Code (hereinafter "Ethical Rules");

HAVING REGARD TO the complaint submitted to the Guarantor, pursuant to Article 77 of the
Regulation, on May 26, 2022, received on June 3, in which Mr. XX and Mr. XX, represented and
defended by Attorney XX and Professor Attorney XX, complained of a violation of the current
legislation on the protection of personal data concerning the dissemination, by Ms. XX through her
social media profiles, of images related to them taken with a mobile phone and posted online without
their consent.

CONSIDERING that in requesting, in particular, to order the respondent to comply with the request to
exercise the rights under Articles 17 and 21 of the Regulation, as well as to impose "the prohibition of
processing and the complete deletion of the data/images" contained in the footage and the obligation
of notification pursuant to Article 17, paragraph 2, of the Regulation, the complainants represented:

- that they were the subject of Ms. XX's attention on April 14, 2022, during the boarding operations at
XX airport and during the flight of XX to XX until the moment of landing, as emerged from the story that
she would later publish on her Instagram profile;
- in particular, during the operations prior to disembarkation, Ms. XX, positioned a few rows behind
them, allegedly addressed Ms. XX asking her—loudly and in a reproachful tone—to wear a mask,
which she was lacking due to a diagnosed respiratory condition;
- the episode escalated into a quarrel that was recorded by Ms. XX without making the complainants
aware of it, who only learned of it upon their return to Italy on April 20, following numerous notifications
received from people who, having seen the video on social media with close-up shots of their easily
recognizable faces, were asking for explanations about the incident;
- the video, accompanied by a "completely false and edited narrative," had indeed been
posted—without any consent from the interested parties—on Ms. XX's Twitter and Instagram profiles
and subsequently became the subject of numerous views and comments, as well as being reproduced
on YouTube and other online sites, including news outlets;
- the widespread and repeated dissemination of the images, also accompanied by comments in
offensive terms, created "a climate of written and verbal aggression" against them not only on social
media but also in daily life and at the workplace;
- despite the request for removal, made to Ms. XX by registered letter on May 17, 2022, duly received,
the video continued to remain online;
- the evidence, in light of these facts, of the violation of Article 6, paragraph 1 of Regulation 2016/679,
given the dissemination of the images, in the absence of any legal basis alternative to the lack of
consent from the interested parties;

HAVING REGARD TO the note of August 3, 2022, in which, in response to the request for information made by the Office on July 13, Ms. XX, represented and defended by Attorney XX, requested the rejection of the complaint and highlighted:

- first of all, that she is a journalist regularly registered with the Order of Journalists of XX since XX and uses social channels for her activity as a consolidated practice among journalists;
- that she documented during the pandemic period the so-called “No vax” and “No green pass” movements;
- that the video in question is not “false and artfully edited” as represented, but depicts the actual occurrence of events regarding the improper use, or lack of, the mask at the time of disembarkation, particularly by the complainant, as recounted in the report and attested by further videos and photographs produced, from which it is visible that Mr. XX, during the trip, also had the “mask under his nose or under his mouth”;
- that the video in question was not filmed without the complainants' knowledge “given that the framing is clearly made above the passengers' seats and the two look straight at the camera”;
- that the facts indicated in the complaint refer to the date of April 14, 2022, when the obligation to use protective devices during air travel was still in effect, an obligation that was lifted only on May 16, 2022;
- that Ms. XX is a well-known and active influencer, owner of an Instagram profile boasting over 45,000 followers and has been defined by the local press, as documented, as “XX”;
- both claimants manage a well-known venue in the province of XX, named “XX,” which was closed “twice within a few months due to non-compliance with Covid regulations,” as confirmed by various newspaper articles still available online, which reported on public safety checks carried out inside and outside the venue in 2021;
- the claimants immediately published identical posts on their respective social media profiles (one on Instagram and the other on Facebook), accompanied by defamatory phrases against her, in which “by doing so, they themselves allowed for their identification,” given that in the stories they were referred to only as “the guy” and “she”;
- following this circumstance, the respondent “was harassed for days with insults and threats on all her social media channels”;
- the claimants also expressed gratitude for the visibility gained following the incident, ‘increasing engagement and the spread of their post by “tagging” some of the most followed social media profiles in Italy;
- the video posted on Instagram was ‘automatically removed after 24 hours as it was an “Instagram Story”;
- the full video proves that the events were published as they actually occurred and that the dissemination of the images was done “only for informational purposes,” to document the non-compliance with the regulations in force for containing the pandemic;
- the respondent's conduct was therefore justified by the exceptions provided for in Article 85 of the aforementioned European Regulation concerning the exercise of journalistic activity and in Article 6 of the Ethical Rules regarding the processing of personal data in the exercise of journalistic activity, given the “significant public or social interest” in the dissemination of the news, the manner in which the events unfolded (the claimant refused to wear a mask despite the regulations in force), and the qualification of the protagonists;
- the relevant regulations also apply, “to all those who regularly publish articles online (for example, a blogger),” as the Authority itself has clarified;

HAVING REGARD to the subsequent reply memorandum from the claimants dated August 31, 2022, in which they highlighted:

- the irrelevance, concerning the subject of the complaint, of the examination of the XX activity carried out by them, as well as their alleged notoriety due to the ownership of a venue and the reference to a local news article regarding Ms. XX dating back to 2011 and to a very followed social media profile;
- the circumstance that the two excerpts from press articles regarding the checks carried out at the claimants' venue concerned behaviors of third parties “completely unrelated to this case”;
- the fact that the clips produced by the respondent show, during a three-hour flight, only for a few

seconds one of the claimants with the mask worn partially;

- the circumstance that the production of two other videos tends to reinforce the claimants' thesis of having been filmed without their knowledge;
- the further circumstance that the claimants were unknown to Ms. XX herself and, therefore, by her own admission, filmed in their capacity as mere passengers on a commercial flight, without being distinguished by any notoriety or distinctive element, except for the failure or incorrect use of the mask;
- the persistent availability on the part of the respondent of the posted video, the two subsequently produced, and any others, as well as the fact that the video subject to the complaint is still widely disseminated online;
- the circumstance that the invoked justification under Article 85 of the European Regulation does not apply in this case, precisely in consideration of Article 6 of the aforementioned Ethical Rules, as "the 'news' is completely lacking" both from a subjective point of view (due to the originality of the fact or the relative description of the particular ways in which it occurred) and from an objective point of view (as well as the qualification of the protagonists);
- the circumstance that a passenger with a medical certificate attesting to a respiratory condition not wearing a mask when disembarking from an airplane is certainly "not a news of significant public or social interest" and the claimants do not fall within the definition of known persons or those exercising public functions, being unknown even to Ms. XX who filmed them;
- finally, the circumstance that, had the latter wished to carry out journalistic activity aimed at documenting the behaviors of passengers regarding compliance with current regulations, she should have verified the reasons why the mask was not worn and, in any case, "screen the faces of the people filmed so as not to make them recognizable," also considering the respect for the principle of the essentiality of the news concerning the dissemination of images in which the identity of the interested party can be discerned;
- the existence, for this reason, of the alleged violation of Article 6 of the Regulation and the validity of the complaint;

HAVING REGARD to the note from the Office dated January 11, 2023, which, pursuant to Article 166, paragraph 5, of the Code, communicated to Ms. XX, the holder of the processing complained of in the complaint, the initiation of the procedure for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, noting the alleged violation of the following provisions:

- the general principles of processing referred to in Article 5, paragraph 1 of the Regulation, and in particular, the principles of "lawfulness and fairness" (letter a) and of "adequacy, relevance, and data minimization concerning the purposes for which they are processed" (letter c);
- Article 137, paragraph 3, of the Code, and Article 6 of the "Ethical Rules concerning the processing of personal data in the exercise of journalistic activity" regarding the principle of "essentiality of information concerning facts of public interest";
- Article 2 of the aforementioned Ethical Rules, which also provides that the journalist, when collecting news in the context of personal data processing, must disclose "their identity, their profession, and the purposes of the collection unless this poses risks to their safety or otherwise makes it impossible to exercise the informative function; avoid artifices or undue pressure";
- Article 12 of the cited Regulation, regarding the obligation of the data controller to provide the data subject with information related to the action taken regarding a request to exercise the rights referred to in Articles 15 to 22 of the same, "without undue delay and at the latest within one month of receiving the request (...)", except for specific reasons for extension;

HAVING REGARD to the defense memorandum of February 1, 2023, in which Ms. XX, reiterating her position and requesting a hearing, highlighted that:

- Ms. XX "cannot fail to be considered a well-known figure" given that she has a public Instagram profile (closed to public viewing after the initiation of the present proceedings), with nearly 50 thousand followers;
- she should be considered a mid-level influencer who grants interviews to the media as "XX" and is described in an article available online as "XX";

- both claimants are well-known figures and have "sought in every possible way to increase their visibility and engagement by tagging in their posts two of the Italian profiles with the most followers," namely those of XX and XX;
- Ms. XX herself thanked, in a now no longer visible post, Ms. XX for the visibility obtained;
- Mr. XX is an XX owner of "XX" and XX (currently in Serie A) and also has "an open Facebook social profile (now with stringent privacy settings) that has reached the maximum number of available contacts (5000)";
- both claimants manage the aforementioned venue with a substantial number of followers on social media (22,400 followers);
- the post in question was published on April 20, 2022, while the images were taken on April 14, 2022;
- Ms. XX "after having explored the personal history of the two individuals she met on the plane (...) and being able to ascertain that they had already been 'in the spotlight' (...) for events similar to those that occurred (...) on board the aircraft, decided to publish the video";
- this publication occurred not with the intent to harm their legal sphere, but in the legitimate exercise of the right to report and in compliance with the principle of essentiality of information, considering the originality of the fact and the need to document the behavior of the claimants concerning Covid-19 regulations;
- the information provided is closely relevant to the role of the claimants and their public life of XX already reported by the national press for similar events;
- there is no mention in the medical certificate produced regarding the exemption from the obligation to wear a mask in relation to the claimant's respiratory condition, whereas, instead, for those suffering from asthma, the use of a mask is strongly recommended by medical science;
- it is not true that the claimants were unaware of being filmed, as they themselves admitted in the identical post published on their social profiles that they had closely observed the resistance, even indicating what she had eaten, despite sitting behind them;
- no reference to the names of the two claimants was ever made with the publication of the report; rather, it was they who "fully identified themselves" by publishing, on the same date, on their social profiles (with no privacy limitations) the video in question, accompanied by "tags of two very well-known profiles and even of the undersigned";
- the opposing request appears to be an attempt to censor journalistic activity, confirmed also by the fact that the video was picked up by other news outlets and represented a noteworthy story;

HAVING REGARD to the minutes of the hearing held on March 7, 2023, during which Ms. XX, in addition to recalling the arguments set forth in the previously submitted memorandum, clarified that:

- "the profiles of the claimants have become public again, and this constitutes a significant fact that, along with other factors, allows attributing to the claimant, Ms. XX, the qualification of mid-level influencer" and confirms that she is a well-known person "also based on what is provided by the Journalists' Code";
- she is a journalist and has acted in that capacity, having always addressed topics such as those related to the pandemic, "so much so that the news in question has also been picked up by other online sites and newspapers" that have never made the interested parties identifiable;
- the story published on Instagram was no longer present at the time of receiving the request from the claimants, while the video "(...) had already been shared by them," making them identifiable, "considering that there had been no identification on their part";
- "the claimants not only recognized her, but were well aware of being filmed as their gaze was directed towards the camera of the mobile phone and, despite being aware of it, they never asked to stop the recording";
- "the lack of response to the inquiry made by the claimants (...) is based on the balancing that must be carried out between privacy and the exercise of journalistic activity";
- in this sense, the "request for deletion made by the claimants of all videos contained in the devices of the respondent was not deemed consistent with the journalistic activity carried out, considering the exceptions to the principles regarding the protection of personal data provided for by Article 85 of the

GDPR”;

CONSIDERED, finally, what was asserted regarding the “availability of Dr. XX to follow up on a request for limitation of processing, noting, however, that the eventual adoption of such a measure would take on the sense of a one-sided censorship considering the fact that the video would remain published, as it indeed is, on the profiles of the claimants” and the “necessity not to censor journalistic activity” in the balancing of the interests at stake;

CONSIDERED that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor”;

VIEWED the applicable regulations in the specific case and

in particular:

- Article 5, paragraph 1, letters a) and c) of the Regulation regarding the general principles of lawfulness and fairness, as well as adequacy, relevance, and limitation of data with respect to the purposes for which they are processed;
- Article 137, paragraph 3 of the Code which provides that the dissemination of data for journalistic purposes and other manifestations of thought must occur in compliance with the limits of the right to report and the principle of “essentiality of information regarding facts of public interest”;
- Article 6 of the “Ethical Rules regarding the processing of personal data in the exercise of journalistic activity” which identifies the prerequisites and limits for the processing of personal data in the journalistic field, in relation to the aforementioned principle of “essentiality of information”;
- Article 2 of these Rules which provides that the journalist when collecting news in the context of the processing of personal data must disclose “their identity, their profession, and the purposes of the collection unless this poses risks to their safety or otherwise makes it impossible to exercise the informative function; avoids artifices or undue pressure”;
- Article 12 of the aforementioned Regulation which imposes on the data controller the obligation to provide the data subject with information regarding the action taken concerning a request to exercise the rights referred to in Articles 15 to 22 of the Regulation “without unjustified delay and at the latest within one month of receiving the request,” unless specific reasons for extension exist;

CONSIDERED that compliance with the aforementioned Ethical Rules constitutes an essential condition for the lawfulness and fairness of the processing of personal data (Article 2-quater of the Code);

CONSIDERED that images of the claimants have been disseminated on the social profiles of Ms. XX, subsequently also taken up by various online sites, collected through the camera of a mobile phone during a commercial flight;

CONSIDERED that, in reporting the described events, these images could not be considered an essential element for the informative purposes pursued and that they could have been disseminated with the aid of measures aimed at avoiding the identifiability of the claimants, considering, moreover, that, as asserted by Ms. XX herself and emerged from the narration of the incident, there had been no identification of them, qualified with terms (such as “the guy” and “she”) aimed at indicating undetermined persons;

EVALUATED, furthermore, that, in light of the different presentation of the facts provided by the parties, the documentation present in the records and in particular the contested video does not provide incontrovertible evidence of the circumstance that the claimants were aware of being filmed by the camera of Ms. XX's mobile phone, nor, even if it could be assumed that they recognized her, that she had made evident both her role as a journalist and the purposes of the image collection;

CONSIDERED that there appears to have been no response to the requests, preliminarily formulated by the claimants pursuant to Articles 17 and 21 of the Regulation, against Ms. XX and that this circumstance cannot be justified by the asserted balancing between privacy and the exercise of

journalistic activity, in light of the obligation of the data controller to respond to the requests of the data subjects in the legitimate exercise of their rights, even possibly in the terms of a denial operating on the basis of the aforementioned balancing;

THEREFORE CONSIDERED that it is necessary to order against Ms. XX pursuant to Article 58, paragraph 2, letter.

f) of the Regulation, the measure of the prohibition of further processing of the video subject to the complaint and any other similar videos that may be in possession, except for mere preservation for potential use in judicial proceedings;

NOTING that, in the event of non-compliance with the prohibition on processing ordered by the Guarantor, the sanction referred to in Article 170 of the Code may apply, in addition to the administrative sanction referred to in Article 83, paragraph 5, letter e) of the Regulation;

CONSIDERING, furthermore, that due to the violations identified above, a specific injunction order should be adopted against Ms. XX pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application of the administrative pecuniary sanction provided for by the combined provisions of Articles 2-quater, 166, paragraph 2 of the Code and 83, paragraph 5 of the Regulation; NOTED that for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation and that in this specific case, the following aggravating circumstances should be considered:

a) the harmfulness, for the privacy of the individuals concerned, of the conduct that led to the dissemination of images related to them, without the adoption of appropriate measures to avoid their identifiability (Article 83, paragraph 2, letter a) of the Regulation);
b) the purposes pursued by the holder, which are more related to a personal interest of the holder himself than to the exercise of the right to report and freedom of information to document the behaviors of passengers regarding compliance with the regulations in force during the pandemic period (cf. Article 83, paragraph 2, letter a) of the Regulation);

and the following mitigating circumstances:

a) the lack of evidence aimed at proving the negative impact on the private life of the individuals concerned, considering that they contributed to facilitating the dissemination of the video through its republication on their social profiles, along with posts containing comments on the incident (cf. Article 83, paragraph 2, letter a) of the Regulation);
b) the circumstance that the video published on Instagram, as an "Instagram Story," was removed by default after 24 hours (cf. Article 83, paragraph 2, letter a) of the Regulation);
c) the expressed willingness of the holder "to comply with a request for limitation of processing" (cf. Article 83, paragraph 2, letter f) of the Regulation);
d) the absence of previous similar violations committed by the same holder (cf. Article 83, paragraph 2, letter e) of the Regulation);
e) the economic and professional conditions of the offender (Article 83, paragraph 2, letter k), considering that Ms. XX primarily conducts her activity alone;

CONSIDERING the parameters mentioned above and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1, of the Regulation;

CONSIDERING that, based on the overall elements mentioned above, taking into due account the various mitigating circumstances that emerged, the pecuniary administrative sanction should be applied in the amount of €2,000.00 (two thousand), equal to 0.01% of the maximum penalty, against Ms. XX;

ALSO CONSIDERING that, pursuant to Articles 166, paragraph 7, of the Code, and 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website should proceed as an accessory sanction;

CONSIDERING that the conditions exist to proceed with the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u) of the Regulation, regarding the violations and measures adopted in this specific case in accordance with Article 58, paragraph 2, of the same Regulation;

HAVING SEEN the documentation in the records;

HAVING SEEN the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Professor Pasquale Stanzione;

ALL OF THE ABOVE HAVING BEEN CONSIDERED, THE GUARANTOR

pursuant to Articles 57, paragraph 1, letter f) of the Regulation, declares the complaint founded for the reasons stated in the preamble and, in particular:

pursuant to Article 58, paragraph 2, letter f) of the Regulation, orders the prohibition of further processing of the aforementioned videos concerning the complainants, with reference to any further online dissemination, except for mere preservation for potential use in judicial proceedings;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, Ms. XX - Tax Code XX - residing in XX, XX to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8, of the Code has the option to settle the dispute by paying, within thirty days, an amount equal to half of the imposed sanction;

ORDERS

Ms. XX, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €2,000.00 (two thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

DISPOSES

a) pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the website. of the Guarantor and

b) pursuant to Article 17 of the Guarantor's regulation no. 1/2019, the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u) of the Regulation, regarding violations and the measures adopted against Ms. XX, in accordance with Article 58, paragraph 2 of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be made to the ordinary judicial authority, with a petition filed, alternatively, at the court of the place where the data controller resides or has its registered office or at the court of the place of residence of the data subject, within thirty days from the date of communication of this provision or within sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE RAPPOORTEUR

Stanzione

THE SECRETARY GENERAL

Mattei